

3 & 4 GEO. 6.

Clyde Lighthouses

Ch. xlii.

Consolidation Order Confirmation Act, 1940.



CHAPTER xlii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Clyde Lighthouses.

[6th November 1940.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Clyde Lighthouses Consolidation Order Confirmation Act 1940.

Short title.

SCHEDULE.

CLYDE LIGHTHOUSES.

Provisional Order to consolidate with amendments the Acts and Order of or relating to the Trustees of the Clyde Lighthouses to authorise the said Trustees to execute improvements of the navigation of the River or Firth of Clyde and for other purposes.

WHEREAS the Trustees of the Clyde Lighthouses (hereinafter referred to as "the Trustees") are vested in the undertaking of the Trustees as hereinafter described and in the management thereof:

And whereas many of the provisions of the Acts and Order set out in the schedule to this Order relating to the several matters and things mentioned in this Order have been varied or superseded by subsequent legislation and the said Acts and Order ought to be repealed and it would be of public and local advantage if such of the provisions of the said Acts and Order as it is deemed expedient to retain were consolidated with amendments into one Order:

And whereas it is expedient to authorise the Trustees further to improve the navigation of the River or Firth of Clyde by altering deepening and widening the channel thereof between the points and to the extent specified in this Order:

And whereas by section 8 (Constitution and incorporation of Trustees) of the Clyde Lighthouses Act 1871 it is provided that the Trustees are to be twenty in number including three ex-officio Trustees one of such ex-officio Trustees being the chairman for the time being of the Trustees of Port Glasgow Harbour:

And whereas by section 4 (Vesting of harbour in town council) of the Port Glasgow Burgh and Harbour Order 1939 the harbour of Port Glasgow was transferred to and vested in the provost magistrates and councillors

of the burgh of Port Glasgow and by section 11 (Winding up of Trustees' affairs and dissolution of Trustees) of the said Order the Trustees of the harbour of Port Glasgow were dissolved with the result that the number of the members of the Trustees was reduced from twenty to nineteen and it is expedient that their number should be restored to twenty by providing that the provost for the time being of the burgh of Port Glasgow should be an ex-officio Trustee in place of the chairman for the time being of the Trustees of Port Glasgow Harbour:

And whereas a plan and sections showing the lines and levels of the works authorised by this Order and the lands proposed to be taken for the purposes thereof and also a book of reference to the said plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order have been deposited with the sheriff clerks of the counties of Renfrew and Dunbarton and with the clerks of the district councils of the districts in which such lands are situated and such plan sections and book of reference are hereinafter respectively referred to as the deposited plan sections and book of reference:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

26 Geo. 5.
 & 1 Edw. 8.
 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I.

PRELIMINARY.

1. This Order may be cited as the Clyde Lighthouses Consolidation Order 1940. Short title.

2. This Order shall commence and take effect on the date of the passing of the Act confirming this Order which date is in this Order referred to as "the commencement of this Order." Commence-
ment of
Order.

PART I.

—cont.

Order
divided
into Parts.

3. This Order is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Incorporation of Trustees Vesting of
undertaking and powers.

Part III.—Election and meetings of Trustees &c.

Part IV.—Rates &c.

Part V.—Works.

Part VI.—Miscellaneous.

Incorporation of
Acts.

4. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not varied by or inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order (namely):—

8 & 9 Vict.
c. 19.

The Lands Clauses Acts except sections 120 to 126 of the Lands Clauses Consolidation (Scotland) Act 1845;

10 & 11 Vict.
c. 16.

The Commissioners' Clauses Act 1847 with the exception of the clauses and provisions with respect to the following matters (that is to say):—

with respect to the qualification of Commissioners with respect to the election and rotation of the Commissioners where the Commissioners are to be elected by the ratepayers or other like class of electors with respect to the meetings and other proceedings of the Commissioners and their liabilities and with respect to the mortgages to be executed by the Commissioners and also with the exception of sections 57 92 93 and 94;

10 & 11 Vict.
c. 27.

The Harbours Clauses Act with the exception of sections 6 to 13 16 to 19 23 25 26 30 to 80 84 85 95 and 101 of that Act.

Any reference to a vessel in the provisions of the Harbours Clauses Act as applied by this subsection shall be deemed to include a reference to a seaplane when on the surface of the water and in section 28 of the said Act any reference to a vessel shall also include a floating dock and a vessel of exceptional construction or method of propulsion belonging to or employed in the service of His Majesty.

And in construing the said sections as incorporated with this Order "the Commissioners" "the undertakers" and "the company" respectively shall mean the Trustees and the words "harbour" "dock" "pier" "work" and "railway" respectively shall mean any work which the Trustees may continue maintain and construct under the authority of this Order:

PART I.
—cont.

Provided that nothing in the Harbours Clauses Act or in this Order shall in any circumstances require or authorise any officer of the Trustees to require the dismantling of a seaplane or any part thereof or the making of any alteration whatsoever to the structure or equipment of a seaplane:

Provided also that nothing in any of the aforesaid provisions or in any byelaw made in pursuance thereof shall prejudice any regulations for the investigation of accidents made under section 12 of the Air Navigation Act 1920 as amended by any subsequent enactment.

10 & 11 -
Geo. 5. c. 80.

This Order shall be deemed to be a special Act within the meaning of the Acts wholly or partially incorporated herewith.

5. In this Order unless there be something in the subject or context repugnant to such construction—

Interpre-
tation of
terms.

(a) the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order shall subject to the provisions of this Order have the same respective meanings;

(b) the following words and expressions shall have the meanings assigned to them (that is to say):—

"Appointed Trustees" "elective Trustees" and "ex-officio Trustees" mean respectively the appointed Trustees elective Trustees and ex-officio Trustees as defined in the section of this Order of which the marginal note is "Constitution and incorporation of Trustees";

PART I.
—cont.

“ Clerk and “ treasurer ” mean respectively the clerk and treasurer for the time being of the Trustees;

“ Collector of rates ” means the person appointed by the Trustees to collect the rates authorised by this Order to be levied by them and includes the assistants of such collector;

“ Harbours Clauses Act ” means the Harbours Docks and Piers Clauses Act 1847;

“ Existing Trustees ” means the Trustees appointed under the repealed Acts;

“ Greenock Harbour Trustees ” means the Trustees of the Port and Harbours of Greenock;

“ Limits of the Trustees ” means the limits as defined in this Order within which the Trustees may exercise the powers conferred on them by this Order;

“ Repealed Acts ” means the Acts and Order specified in the schedule to this Order;

“ Returning officer ” means the returning officer at the elections to be held under the provisions of this Order;

“ Seaplane ” includes a flying boat and any other aircraft designed to manoeuvre on the water;

“ Trustees ” means the Trustees of the Clyde Lighthouses incorporated or continued in office under this Order;

“ Undertaking ” means the undertaking of the Trustees for the time being;

“ Vessel ” includes ship boat lighter and craft of any kind however navigated or propelled and any seaplane on the surface of the water.

Repeal of
Acts &c.

6. Subject to the provisions of this Order the Acts and Order specified in the schedule to this Order so far as not previously repealed are hereby repealed.

PART II.

INCORPORATION OF TRUSTEES VESTING OF UNDERTAKING
AND POWERS.

7. Each person holding office as one of the Trustees at the commencement of this Order shall continue to hold office during the remainder of his term of office under the repealed Acts unless he resigns or becomes disqualified to be a Trustee in terms of the provisions of this Order.

Existing
Trustees
continued
in office.

8.—(1) On and after the commencement of this Order the Trustees for executing and carrying into effect the provisions of this Order shall be twenty in number and shall be the persons hereinafter specified (that is to say):—

Constitu-
tion and
incorpora-
tion of
Trustees.

Eleven persons hereinafter called “ elective Trustees ” consisting of—

Six persons to be elected in virtue of the provisions hereinafter contained by and from among the ratepayers qualified and registered as hereinafter mentioned as electors for the city of Glasgow;

Three persons to be elected in like manner by and from among the ratepayers qualified and registered as hereinafter mentioned as electors for the burgh of Greenock; and

Two persons to be elected in like manner by and from among the ratepayers qualified and registered as hereinafter mentioned as electors for the burgh of Port Glasgow;

Five persons to be appointed in manner hereinafter provided and hereinafter called “ appointed Trustees ” consisting of—

One person to be appointed by the Merchants House of Glasgow;

Two persons to be appointed by the Chamber of Commerce and Manufactures of Glasgow; and

Two persons to be appointed by the Chamber of Commerce and Manufactures of Greenock;

PART II.
—cont

Three persons as ex-officio Trustees consisting of—

The chairman for the time being of the Trustees of the Clyde Navigation;

The chairman for the time being of the Greenock Harbour Trustees;

The provost of the burgh of Port Glasgow;
and

Sir Michael Hugh Shaw Stewart of Greenock and Blackhall baronet and his heirs male in the estate of Greenock.

(2) The several persons who from time to time are under this Order or any subsequent Act or Order amending or extending this Order holding office as Trustees shall (subject to the provisions of any such subsequent Act or Order) continue incorporated by the name of "The Trustees of the Clyde Lighthouses" and by that name continue and be a body corporate with perpetual succession and a common seal and by that name shall have power to sue and may be sued and shall have power to acquire hold use and dispose of lands and other property for the purposes of this Order and to put into execution the powers and provisions of this Order and with all the other privileges of a body corporate.

Definition
and vest-
ing of
under-
taking.

9. The undertaking of the Trustees comprises and shall continue to comprise the lighthouses on the Island of Little Cumbrae and at Toward Point and at the Cloch in the Firth of Clyde and all other lights beacons buoys and land or sea marks and the whole lands houses buildings roads accesses powers rights and privileges connected with the said lighthouses lights beacons buoys and land or sea marks and all other works purchased acquired erected constructed or placed by or vested in the existing Trustees or their predecessors under the authority or in the execution or purported execution of the repealed Acts and of this Order and all the property estate and effects heritable and moveable real and personal belonging or owing to or held by the existing Trustees subject to the existing debts liabilities contracts and obligations affecting the same are hereby vested in the Trustees and may be held used exercised enjoyed and enforced by them under the authority of this Order.

10. The limits of the Trustees are and shall continue to be the River or Firth of Clyde between a line drawn due east and west true across the same at the southernmost point of the Island of Little Cumbrae from the coast of Ayrshire to the coast of Kintyre and a line drawn across the said river or firth from Newark Castle in Renfrewshire to Cardross Burn in Dunbartonshire.

PART II.
—cont.
Limits of
Trustees.

11. Subject to the provisions of this Order the Trustees shall make provision for the lighting and buoying of the River and Firth of Clyde within the limits of the Trustees and may continue and maintain the lighthouses lights beacons buoys and land or sea marks vested in them by this Order and after consultation with the Clyde Pilotage Authority may alter improve extend or discontinue the same or any of them and may erect construct place maintain or discontinue such substituted new or additional lighthouses lights beacons buoys fog signalling apparatus radio beacons and other apparatus necessary or expedient in the interests of navigation and land or sea marks dredged channels and other works within the limits of the Trustees as they think expedient and all necessary accesses works and conveniences connected therewith and may purchase and acquire by agreement such lands and other property as may be necessary for the said purposes:

Trustees
may main-
tain
existing
and erect
new light-
houses and
beacons.

Provided that any radio beacons and other apparatus erected constructed placed or maintained under this section shall not be installed or worked in contravention of the Wireless Telegraphy Acts 1904 to 1926 or any statutory re-enactment or modification thereof.

12. Subject to the provisions of this Order the Trustees may from time to time within the limits of the Trustees do all or any of the things following (namely):—

Power to
dredge &c

- (a) Dredge cleanse and scour the River or Firth of Clyde (in this section referred to as "the river");
- (b) Alter deepen enlarge widen lengthen straighten and improve the bed and channel of the river;
- (c) Reduce or remove any shoals shelves banks or other accumulations in the river;
- (d) Improve any bend or remove any angle in the course of the river and for such purpose enter into agreements with the owners of land

PART II.
—cont.

adjoining or in or near to the river for the purchase of land or otherwise to enable them to effect the same;

- (e) Abate or remove or cause to be abated or removed all impediments or obstructions in the river;
- (f) Dredge and raise from the river gravel sand and other substances for the purposes of making altering repairing and maintaining the banks and straightening and improving the course of parts of the river and constructing altering repairing and maintaining works executed or to be executed by or for them or belonging to them;
- (g) Carry away or deposit on the banks of the river or on lands adjoining the same by agreement with the owner thereof any materials obtained in dredging or otherwise deepening and improving the bed and channel of the river or sell or dispose of the same as they think fit:

Provided that the powers of the Trustees under this section shall be exerciseable subject to the provisions of the section of this Order of which the marginal note is "Crown rights" and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands or the Minister of Shipping on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Trustees to the Commissioners of Crown Lands or to the Minister of Shipping of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Trustees under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands or the Minister of Shipping as the case may be:

41 & 42 Vict.
c. 76.

Provided further that before exercising the powers conferred by this section within a distance of fifty yards of any submarine cable or telegraphic line (as defined by the Telegraph Act 1878) placed or maintained by the Postmaster-General in the bed or channel of the river the Trustees shall give to the Postmaster-General seven days' notice in writing of their intention to exercise such powers.

13. The Trustees may provide hire maintain and use such engines piling machinery diving bells dredgers ballast lighters barges tug boats and other vessels tackle machinery appliances and conveniences as they think proper for executing and maintaining the works authorised by or vested in the Trustees under this Order or for any other purpose of this Order.

PART II.
 —cont.
 Power to provide engines dredgers &c.

14.—(1) The Trustees may retain maintain and hold dwelling-houses and other buildings now in their possession for persons employed by them for the purposes of the undertaking and may erect purchase or take on lease other dwelling-houses and buildings for such persons employed by them as require in consequence of the nature of their duties to reside in close proximity to the places where they are employed and may fit up maintain and sell any such buildings for and to such persons upon any lands for the time being belonging to the Trustees for the purposes of the undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Trustees for those purposes and may sell any such buildings no longer required for the purposes of the undertaking.

Dwelling-houses for Trustees' employees.

(2) Nothing in this section shall empower the Trustees to create or permit a nuisance.

PART III.

ELECTION AND MEETINGS OF TRUSTEES &C.

15. For the purposes of the elections of elective Trustees every person who during the year ending on the thirty-first day of August next preceding such election has paid or has been returned to the clerk as having paid either as principal or as agent for any other person two pounds or upwards of rates exigible under this Order or under any of the repealed Acts shall be qualified to be an elector and to be elected an elective Trustee and shall be entitled to be registered as hereinafter mentioned.

Qualification of electors and Trustees for elections.

16.—(1) The name of any person qualified to be an elector who at the time of making up the lists of electors resides or has a place of business in or within three miles of the parliamentary boundaries (as the same may be fixed for the time) of the city of Glasgow

Separate lists of electors for Glasgow Greenock and Port Glasgow.

PART III.
—cont.

or the burgh of Greenock or the burgh of Port Glasgow respectively shall be placed on the list of electors for the city of Glasgow or the burgh of Greenock or the burgh of Port Glasgow (as the case may be).

(2) The name of any person qualified to be an elector who resides or has a place of business at the time of making up the said lists elsewhere than as above described or in or within three miles of the parliamentary boundaries of more than one of the three places above named shall be placed on the list of electors for any one of the said three places which he selects and intimates in writing to the clerk on or before the fifteenth day of September next preceding the making up of such lists and a general intimation to that effect shall continue in force until withdrawn.

(3) The name of any person who fails to make such selection in manner aforesaid shall be placed on the list of electors for the city of Glasgow.

(4) A person shall not be registered as an elector for more than one of the said three places.

(5) The said distance of three miles shall be measured in the manner provided in the section of this Order of which the marginal note is "Mode of computing distances."

Trustees to
make up
and publish
lists of
qualified
electors.

17.—(1) On or before the first day of October in each year the Trustees shall cause to be made up lists of the ratepayers qualified to be electors for the city of Glasgow and the burgh of Greenock and the burgh of Port Glasgow respectively under the provisions herein contained and the clerk shall on or before the fifteenth day of October in each year certify the said lists and publish by advertisement as provided in the section of this Order of which the marginal note is "Newspaper advertisements" a notice that lists of the persons qualified as aforesaid have been made up and certified by him and that such lists are accessible to the public at all reasonable times within the office of the clerk.

(2) Any person whose name has been omitted from any of the said lists may on or before the first day of November in each year apply to the sheriff of Lanarkshire in the case of the list for the city of Glasgow or to the sheriff of Renfrew and Bute in the cases of the lists for the burgh of Greenock and the burgh of Port

Glasgow and such sheriff shall if he see fit cause the name of such ratepayer to be added to such list and the said lists with any additions so made shall be deemed to be the register of electors for the next succeeding election under this Order.

18.—(1) (a) Where any firm or body of trustees is in respect of payment of rates exigible under this Order qualified to be an elector in terms of this Order and where the amount of rates paid by such firm or body of trustees during the year ending the thirty-first day of August immediately preceding an election amounts to the sum of two pounds or more such firm or body of trustees may before the date fixed for revising the lists of electors in terms of this Order intimate to the clerk the name or names of one or more of the partners or trustees as the case may be (but not exceeding five in number) on whose behalf such payment has been made.

Partners of
firms
trustees &c.
qualified as
electors.

(b) Such payment shall be deemed to have been made by the partner or partners or trustee or trustees so named and each such partner or trustee as the case may be shall in place of but not in addition to such firm or body of trustees be qualified to be an elector and to be an elective Trustee in respect thereof under this Order in the same manner and with the same powers as if such payment had been made by him as an individual. Provided that the amount of rates paid by such firm or body of trustees is sufficient to afford the qualification of two pounds to each of the partners or trustees whose name has been so intimated.

(c) If the rates paid by such firm or body of trustees do not afford the requisite qualification to all the partners or trustees named in such notice as many of such partners or trustees in the order therein named as shall be afforded such qualification by the apportionment of the total amount of such rates between or among them shall be deemed the persons qualified in respect of the rates paid by such firm or body of trustees.

(2) For the purposes of this section where two or more individual persons appear in the register of electors made up in pursuance of the preceding section of this Order as having jointly paid four pounds or more of rates within the year ending the thirty-first day of August immediately preceding an election such individual persons shall be deemed a firm within the meaning

PART III.
—cont.

and for the purposes of this section and the relative provisions of this Order.

(3) Intimations to the clerk under this section may be made by a notice signed on behalf of the firm or body of trustees making the intimation by any one partner of such firm or any one of such body of trustees. Provided that when more than one intimation under this section is received by the clerk from any one firm or any one body of trustees the person named in the first notice received by him shall be deemed to be the elector qualified in terms of this section.

Members of
corpora-
tions and
incorporated
companies
qualified as
electors.
19 & 20
Geo. 5. c. 23.

19.—(1) (a) Where the amount of the rates exigible under this Order paid by any corporation or company incorporated by royal charter or under the Companies Act 1929 or otherwise during the year ending the thirty-first day of August immediately preceding an election amounts to the sum of two pounds or more such corporation or company may before the date fixed for revising the list of electors in terms of this Order intimate to the clerk the name or names of the person or persons (not exceeding five in number all of whom shall be members of such corporation or company) on whose behalf such payment has been made and such payment shall be deemed to have been made by the person or persons so named:

Provided that if the rates paid by such corporation or company do not afford the requisite qualification to all the members of such corporation or company named in such notice as many of such members in the order therein named as shall be afforded such qualification by the apportionment of the total amount of such rates between or among them shall be deemed the persons qualified in respect of the rates paid by such corporation or company:

(b) Each such person shall in place of but not in addition to such corporation or company be qualified to be an elector and to be an elective Trustee in respect thereof under this Order in the same manner and with the same powers as if such payment had been made by him as an individual. Provided that the amount of rates paid by such corporation or company shall be sufficient to afford the qualification of two pounds to such person whose name has been so intimated.

(2) Intimations to the clerk under this section may be made by notice signed on behalf of the corporation or company making the intimation by a recognised official of the corporation or company. Provided that when more than one intimation under this section is received by the clerk from any one corporation or company the person named in the first notice received by him shall be deemed to be the elector qualified in terms of this section.

PART III.
—cont.

20. The following rules shall be observed with respect to the election of the elective Trustees:—

Rules to be
observed in
election of
elective
Trustees
and taking
polls.

- (1) The election shall take place in the month of November in each year:
- (2) At each election two Trustees shall be elected by and from among the electors for the city of Glasgow one Trustee shall be elected by and from among the electors for the burgh of Greenock and one Trustee shall be elected by and from among the electors for the burgh of Port Glasgow:
- (3) (a) The chairman of the Trustees for the year current at the time or some person appointed by him shall be the returning officer;
 \ (b) ~~In the event of the chairman being~~
 from any cause unable to act or to appoint some person to act as returning officer then the deputy chairman for the year current at the time or some person appointed by him shall be the returning officer:
- (4) On every occasion of the election of Trustees the returning officer shall convene a meeting of the electors for the city of Glasgow and the burgh of Greenock and the burgh of Port Glasgow respectively in those respective places for the purpose of such election and shall give notice of such meeting and of the time and place at which it is to be held by advertisement at least six days before such meeting:
- (5) The returning officer shall preside at and regulate the proceedings at such meetings and his decision upon any questions which may arise thereat shall be final:
- (6) (a) At any such meeting any qualified person may be nominated as a Trustee by any elector as

PART III.
—cont.

proposer and seconded by any other elector and the proposer and seconder shall at the time of such nomination deliver to the returning officer a nomination paper subscribed by them or transmit the nomination paper to the returning officer by post so as to reach him not later than twenty-four hours before the date of the election;

(b) The nomination paper shall set forth the christian name and surname with the place of abode and designation of the candidate nominated and shall state—

(i) that he is qualified and willing to act as a Trustee; and

(ii) the respective places of abode and designations of his proposer and seconder;

(7) In the event of the number of persons nominated and not subsequently withdrawn exceeding the number to be elected a poll shall be taken in manner hereinafter provided but if no more candidates than the number to be elected are nominated and not subsequently withdrawn a declaration by the returning officer that such candidates are elected Trustees shall be evidence of the fact and thereupon a poll shall not take place:

(8) In the event of the number of persons nominated exceeding the number to be elected any of such candidates may withdraw from his candidature by notice signed by him and delivered to the clerk not later than twelve o'clock noon of the day next after that on which the nomination was made. Provided that such notices shall take effect in the order in which they are delivered to the clerk and that no such notice shall take effect so as to reduce the number of candidates nominated below the number to be elected:

(9) The following rules shall be observed with respect to taking the poll for the election of Trustees at the elections which are to take place in the month of November one thousand nine hundred and forty and in succeeding years:—

(i) The returning officer shall direct the poll to be taken at such place within the

city of Glasgow or the burgh of Greenock or the burgh of Port Glasgow according as the election relates to such places respectively and on such day not exceeding six clear days from the day of nomination and within such hours and after such advertisement as he may determine;

PART III.
 —cont.

(ii) The poll shall be taken by ballot in such manner as the returning officer shall direct. The result of the poll shall be declared by the returning officer and his declaration shall be final;

(iii) In the event of two or more candidates having the same number of votes both or all of whom cannot be elected Trustees the returning officer shall determine the candidate or candidates to be elected and his decision shall be final;

(iv) The expenses incident to the election (but not including the expenses of any candidate) shall be paid by the Trustees out of the revenues of the undertaking.

21. Any person who wilfully personates any person entitled to vote in pursuance of this Order or falsely assumes to act in the name or on the behalf of any person so entitled to vote shall be guilty of an offence and shall for every such offence be liable to a penalty not exceeding twenty pounds.

Penalty on personation of voter.

22. The distances prescribed by this Order shall be measured in a straight line from the residence or place of business of the ratepayer qualified as aforesaid to the nearest point of the parliamentary boundary of the city of Glasgow or the burgh of Greenock or the burgh of Port Glasgow as the case may be and such distance may be measured and determined by reference to the ordnance maps.

Mode of computing distances.

23. All notices and advertisements prescribed by this Order to be published shall be inserted—

Newspaper advertisements.

(a) so far as relating to ratepayers electors or elections for the city of Glasgow in at least one newspaper published in the city of Glasgow; and

PART III.
—cont.

- (b) so far as relating to ratepayers electors or elections for the burgh of Greenock or the burgh of Port Glasgow in at least one newspaper published in the burgh of Greenock.

Rotation of
Trustees.

24.—(1) At the annual meeting of the Trustees in every year after the commencement of this Order there shall go out of office—

- (a) two of the elective Trustees elected from among the electors for the city of Glasgow;
- (b) one of the elective Trustees elected from the electors for the burgh of Greenock; and
- (c) one of the elective Trustees elected from the electors for the burgh of Port Glasgow.

(2) The Trustees who go out of office in each such year shall be in every case the elective Trustees who have been longest in office since their last election.

(3) A Trustee going out of office at an annual meeting and not re-elected shall not be entitled to attend or vote at such annual meeting.

(4) Every elective Trustee due to go out of office at any annual meeting may be re-elected at the election in the month of November immediately preceding such annual meeting and after such re-election shall with reference to going out of office be considered as a new elective Trustee.

(5) In each case the places of the elective Trustees retiring from office shall be filled by the persons elected to be elective Trustees at the election in the month of November immediately preceding such annual meeting and the persons so elected shall be entitled to act and vote as Trustees at the annual meeting next following their election in place of the persons retiring from office at such annual meeting.

Appoint-
ment of
Trustees by
Merchants
House of
Glasgow
and
Chambers
of Com-
merce of

25.—(1) The Trustees to be appointed by the Merchants House of Glasgow and the Chamber of Commerce and Manufactures of Glasgow and the Chamber of Commerce and Manufactures of Greenock shall be appointed at ordinary or special meetings of those bodies respectively to be called by their respective clerks and to be held in the month of October or November in every year.

(2) Notice of each such meeting stating the time and place and object of the meeting shall be given by advertisement inserted eight days at least before the day appointed for holding such meeting—

PART III.
—cont.
Glasgow
and
Greenock.

(a) as respects the meetings of the Merchants House of Glasgow and the Chamber of Commerce and Manufactures of Glasgow in a newspaper published in Glasgow; and

(b) as respects the meetings of the Chamber of Commerce and Manufactures of Greenock in a newspaper published in Greenock.

(3) The persons so appointed shall enter upon office at the first annual meeting of the Trustees next after their appointment and shall be entitled to act and vote as Trustees at such annual meeting in place of the persons then going out of office and shall themselves go out of office at the annual meeting of the Trustees in the year following.

(4) Every Trustee due to go out of office at any annual meeting may be re-appointed in the month of October or November next preceding such annual meeting.

26.—(1) Any person who at any time after his nomination or election as a Trustee accepts or holds any office or place of profit under the Trustees or participates in the profits of any contract entered into with the Trustees shall thereupon cease to be a Trustee and his office shall become vacant.

Disqualifi-
cation of
Trustees.

(2) A Trustee shall not vacate his office by reason of his being a shareholder of a bank or joint stock company with which the Trustees may have transactions in the ordinary course of business.

(3) A Trustee shall not be entitled to vote upon any question relating to the carrying out of works authorised by this Order or to the affairs of the Trustees wherein any company in which he is a shareholder is interested or in any question connected therewith and if he so votes his vote shall not be counted and he shall be guilty of an offence and shall be liable to a penalty not exceeding twenty pounds.

PART III.

—cont.

Supply of
occasional
vacancies.

27.—(1) If any elective or appointed Trustee dies or resigns or becomes disqualified or incompetent to act then—

- (a) if he be an elective Trustee the remaining Trustees elected by the electors for the city of Glasgow or the burgh of Greenock or the burgh of Port Glasgow (as the case may be) shall fill up the vacancy by the appointment of another qualified person in place of the vacating Trustee; and
- (b) if he be an appointed Trustee the chairman of the body by whom he was appointed shall by writing under his hand appoint a Trustee from such body to fill up the vacancy.

(2) In every such case the Trustee so appointed to fill up a vacancy shall continue in office only so long as the person in whose place he has been appointed would have remained in office if he had not died or resigned or become disqualified or incompetent to act.

Disqualifi-
cation of
elective
Trustees
and filling
up vacan-
cies.

28.—(1) An elective Trustee shall be disqualified from holding office if at any time during the period for which he was elected to hold office his name ceases to be on the register of electors.

(2) Such Trustee shall nevertheless continue in office until the next succeeding annual meeting of the Trustees and at any time in the month of November preceding such annual meeting his successor may be appointed in the manner provided by the immediately preceding section of this Order and shall come into office at such annual meeting.

(3) If at any time there are not in office any Trustees—

- (a) elected (as the case may be) by the electors—
 - (i) for the city of Glasgow; or
 - (ii) for the burgh of Greenock; or
 - (iii) for the burgh of Port Glasgow; or
- (b) appointed in manner provided by this Order;

instead of Trustees so elected or appointed the electors for such city or burgh (as the case may be) shall at the

next succeeding annual election elect other Trustees duly qualified to fill up such vacancies.

PART III.
—cont.

29.—(1) The Trustees may from time to time appoint committees of their number for carrying into effect the provisions of this Order or any part thereof with such powers as the Trustees might themselves lawfully exercise and as they think expedient to confer on such committees.

Power to
appoint
committees.

(2) The Trustees may fix the quorum of such committees but where no quorum is so fixed a majority of the members of the committee shall be a quorum.

(3) Any committee so appointed shall have power to appoint sub-committees with such powers as they themselves could lawfully exercise.

30. Subject to the provisions of this Order the Trustees may from time to time make alter and revoke standing orders for the regulation of their proceedings and business and of the proceedings and business of committees of the Trustees.

Standing
orders.

31.—(1) The annual meetings of the Trustees shall be held in the city of Glasgow in the month of December in every year on such day as the chairman of the Trustees or whom failing the deputy chairman of the Trustees shall appoint.

Meetings of
Trustees.

(2) Ordinary meetings of the Trustees for the transaction of the general business of the Trustees shall be held at such times and places as may from time to time be appointed by the Trustees or by the chairman of the Trustees or whom failing the deputy chairman of the Trustees.

(3) Special meetings of the Trustees shall at any time be called by the chairman of the Trustees or by the clerk on a requisition in writing signed by any two of the Trustees.

(4) Notice of such special meeting stating the purpose for which it is called shall be sent by post or delivered to each Trustee forty-eight hours at least before the meeting and no business shall be considered at such special meeting except that which has been specified in such notice.

PART III.
—cont.
Quorum of
Trustees.

32. At all meetings of the Trustees five shall be a quorum and every such meeting may be adjourned by the Trustees present thereat (whether more or less than a quorum) to such time as they may think fit.

Chairman
and deputy
chairman.

33.—(1) At each annual meeting of the Trustees the Trustees present at such meeting shall choose one of the Trustees to act as chairman of the Trustees until the next annual meeting and shall also if they think fit choose another Trustee to act as deputy chairman for the same period.

(2) If the chairman or deputy chairman dies or resigns or ceases to be a Trustee or otherwise becomes disqualified to act the Trustees present at the meeting next after the occurrence of such vacancy shall choose another of the Trustees to fill such vacancy.

(3) Every such chairman or deputy chairman shall continue in office so long only as the person in whose place he may be so chosen would have been entitled to continue in office if he had not died or resigned or ceased to be a Trustee or otherwise become disqualified.

(4) At all meetings of the Trustees the chairman or in his absence the deputy chairman shall preside and if at any meeting neither the chairman nor the deputy chairman be present the Trustees present shall choose one of their number then present to be chairman of such meeting.

(5) In the case of an equality of votes at any meeting of the Trustees the person presiding at such meeting shall in addition to his own vote have a casting vote.

Outgoing
chairman
or deputy
chairman
to act till
new
chairman
appointed.

34.—(1) The person holding office as chairman of the Trustees immediately before any annual meeting of the Trustees or failing him the person holding office as deputy chairman of the Trustees immediately before such annual meeting shall act as chairman until the Trustees choose one of their number to be their chairman for the ensuing year.

(2) The person so acting as chairman if he but for this enactment would have ceased at the time to hold office as a Trustee shall have only a casting vote and not a deliberative vote at any meeting at which he presides.

35. An act or proceeding of the Trustees or of any committee of the Trustees shall not be invalidated or be illegal in consequence only of the non-election or non-appointment of any Trustee under the provisions of this Order or of there being at the time of such act or proceeding any vacancy in the number of the Trustees.

PART III.
—cont.
Vacancy
not to
invalidate
proceedings.

36. All acts and proceedings of the Trustees or of any committee of the Trustees or of any persons acting as Trustees shall notwithstanding the fact that it is afterwards discovered that there was some defect in the appointment or qualification of any such Trustees or persons acting as Trustees or that they or any of them were or had become disqualified be as valid as if every such person had been duly appointed and was qualified to be a Trustee.

Acts of
Trustees
valid not-
withstand-
ing defects
in appoint-
ment or
qualifica-
tion.

37.—(1) The Trustees shall keep and enter in proper books minutes of their proceedings and fair just and true accounts of the receipts and disbursements of all moneys which are received or expended by them which books of accounts and other proceedings shall be open at all convenient hours of business to the inspection of any of the Trustees.

Trustees to
keep proper
books
Trustees to
bear their
own ex-
penses.

(2) The Trustees shall at every meeting bear and pay their own charges and expenses.

38. The Trustees may choose and appoint by writing under their hands clerks and engineers and a treasurer and collectors for levying the rates authorised by this Order and such other officers as they shall judge necessary to be employed under them for carrying this Order into execution and from time to time may remove such officers or any of them and appoint others in their place and may pay such fees or salaries to such clerks and engineers and treasurer and collectors and other officers as the Trustees consider reasonable.

Trustees
empowered
to appoint
and pay
officers.

39. The officers and servants of the existing Trustees shall be the officers and servants of the Trustees until they are removed by the Trustees or die or resign and shall be subject to the provisions of this Order and of the Acts incorporated herewith as regards both past and future conduct and intromissions in so far as respectively applicable and all bonds or securities for such conduct and intromissions granted to the existing Trustees shall be and remain valid and may be enforced

Officers to
continue till
removed.

PART III.
—cont.

by the Trustees to the same extent and effect that such bonds or securities might have been enforced by the existing Trustees if the Act confirming this Order had not been passed.

Officers of
existing
Trustees
account-
able for
books &c.

40. All officers and persons who at the commencement of this Order have in their possession or under their control any books documents papers or effects belonging to the existing Trustees or to which the existing Trustees would but for the passing of the Act confirming this Order have been entitled shall be liable to account for and deliver up the same to the Trustees or to such persons as the Trustees may appoint to receive the same in the same manner and subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers or effects for the Trustees.

Power to
make
super-
annuation
and other
allowances.

41.—(1) The Trustees may grant such gratuities pensions or allowances or make such other payments as they may think fit—

(a) to any clerk officer or employee of the Trustees;
or

(b) (where in their opinion adequate provision is not otherwise made) to the widow or family or dependants of any such officer or employee.

(2) The Trustees may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such clerk officer or employee widow family or dependants as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the revenues of the Trustees.

(3) For the purposes of this and the immediately succeeding section of this Order any person employed by the Trustees for part time only shall be deemed to be a clerk officer or employee of the Trustees notwithstanding that his whole time is not devoted to the service of the Trustees.

Contribu-
tory
pensions
fund.

42.—(1) In addition to the powers conferred on the Trustees by the last preceding section of this Order the Trustees may if they think fit establish and maintain a fund to be called "the pensions fund" and pay out

of the pensions fund gratuities of any sum or pensions or other allowances or benefits to any officer or employee of the Trustees who may be contributors to the pensions fund or to the widow family or dependants of any such officer or employee and the pensions fund shall be applicable only for the payment of such gratuities pensions allowances and benefits as aforesaid and for no other purpose whatsoever.

PART III.
—cont.

(2) The Trustees may also prepare put in force and from time to time modify alter or rescind a scheme prescribing the terms and conditions on which any officer or employee of the Trustees or any classes of such officers or employees may or shall become contributors to the pension fund and the contributions to be made by such officers or employees and the gratuities pensions allowances or benefits to which such contributors shall be entitled Provided that any such modification alteration or rescission of any such scheme shall not place any person who at the date of such modification alteration or rescission is a contributor to the pensions fund or entitled under such scheme to a gratuity pension or other allowance or benefit in a worse position than he would have been if such modification alteration or rescission had not been made.

(3) The Trustees may apply their revenues for all or any of the purposes of this section including the purpose of maintaining the pensions fund at an adequate amount.

(4) An officer or employee of the Trustees shall not be required to become a contributor to any pensions fund established under this section until the pensions fund has been registered under the Superannuation and other Trust Funds (Validation) Act 1927.

17 & 18
Geo. 5. c. 41.

43. The Trustees may from time to time make reasonable payments or contributions from the revenues of the undertaking to and for the purposes of any hospital infirmary convalescent home nursing home association or other charitable institution mainly supported by voluntary contributions and may also from such revenues supplement any contributions made to any such hospital infirmary home association or institution by their employees.

Payments
to
charitable
institutions.

PART III.

—cont.

Resolutions
to remain
in force.

44. All resolutions of any meeting of the existing Trustees or of any duly constituted and authorised committee thereof shall so far as the same are applicable and remain in force continue to be operative and shall apply to the Trustees and to the officers and servants of the Trustees until duly revoked or altered by the Trustees or under their authority.

Appoint-
ment of
auditor.

45.—(1) The Trustees shall from time to time apply to the sheriff of Lanarkshire for the appointment of an auditor (being a person well skilled in accounts and not being one of the Trustees or holding office under them) to audit and docquet the accounts of the Trustees and if the office of such auditor becomes vacant before such accounts have been audited by him by death or from any other cause the said sheriff shall from time to time appoint an auditor to fill such vacancy.

(2) The auditor in office at the commencement of this Order shall continue in office until a new appointment is made on the application of the Trustees.

(3) It shall not be necessary for the Trustees to make annual applications to the said sheriff for the appointment of an auditor.

Accounts
to be
audited.

46.—(1) It shall be the duty of such auditor once in every year to audit the accounts of the Trustees and for such purpose the Trustees shall deliver to him their accounts and books and the proper vouchers in support of the same and the auditor shall examine the accounts and account books and vouchers of the Trustees and may either make a special report on the said accounts or simply confirm the same.

(2) Such report or confirmation shall be read to the Trustees at the annual meeting of the Trustees.

(3) The Trustees shall pay to such auditor for his service in making such audit a fee depending upon the extent of his service.

PART IV.

RATES &C.

Rates.

47.—(1) On and after the commencement of this Order the Trustees may (except as provided in the sections of this Order whose marginal notes are respectively "Exemption from rates" and Exemptions

and savings for Government departments ") demand levy collect and receive on and in respect of all vessels navigating any part of the River or Firth of Clyde within the limits of the Trustees any rates not exceeding the following (that is to say):—

PART IV.
—cont.

(a) Foreign-going vessels.

Seven-twelfths of a penny per register ton and if such vessel navigates any part of the said river or firth within the limits of the Trustees to the eastward of Ladyburn an additional rate of two-twelfths of a penny per register ton.

(b) Coasting vessels.

Seven twenty-fourths of a penny per register ton and if such vessel navigates any part of the said river or firth within the limits of the Trustees to the eastward of Ladyburn an additional rate of two twenty-fourths of a penny per register ton.

(c) River craft.

If such river craft navigates any part of the said river or firth within the limits of the Trustees to the westward only of Ladyburn seven forty-eighths of a penny per register ton.

If such river craft navigates any part of the said river or firth within the limits of the Trustees to the eastward only of Ladyburn two forty-eighths of a penny per register ton.

If such river craft navigates any part of the said river or firth within the limits of the Trustees both westward and eastward of Ladyburn nine forty-eighths of a penny per register ton.

(2) In this section the expression "foreign-going vessels" means all vessels navigating any part of the River or Firth of Clyde within the limits of the Trustees to or from any place beyond the United Kingdom of Great Britain and Northern Ireland and Eire the expression "coasting vessels" means all vessels (excepting river craft) navigating any part of the River or Firth of Clyde within the limits of the Trustees to or from any place within the United Kingdom of Great Britain and

PART IV.
—cont.

Northern Ireland and Eire without proceeding to or coming from any other place or country the expression "river craft" means all vessels navigating any part of the River or Firth of Clyde within the limits of the Trustees but not plying elsewhere than within the said river or firth to the northward of the southern limits of the Trustees.

(3) The following provisions shall apply to the demanding levying collecting and receiving of the said rates:—

- (a) The rates shall be payable in respect of foreign-going vessels and coasting vessels for each voyage outwards and for each voyage inwards;
- (b) The rates shall be payable in respect of river craft not for each voyage but for each day (reckoned from six o'clock in the morning to six o'clock in the morning following) on which the vessel navigates to from or within any part of the limits of the Trustees;
- (c) The rates shall be payable irrespective of the vessel passing any lighthouse or lighthouses of the Trustees and whether the vessel does or does not discharge or load in any of the ports or harbours in the said River or Firth of Clyde;
- (d) When in the aggregate amount of the rates payable in respect of any vessel there is a fraction of a penny beyond one penny or any integral number of pence such fraction if it be a half or any fraction larger than a half shall be deemed and charged as a penny but if such fraction shall be less than a half it shall not be charged.

Exemption
from rates.

48.—(1) The rates authorised by this Order shall not be levied on or in respect of yachts belonging to any yacht club or on or in respect of any vessel under twenty tons register or on or in respect of any vessel on a trial trip or any vessel when navigated wholly or bona fide in ballast and upon which no profit or freight may be made and without having any passenger on board.

(2) Any person who claims and takes the benefit of any such exemption without being entitled thereto shall be guilty of an offence and shall for every such offence be liable to a penalty not exceeding ten pounds.

49. The Trustees may from time to time when and as they deem it expedient so to do reduce any of the several rates authorised by this Order and may from time to time again advance such rates so that the same when so advanced shall not exceed the rates hereinbefore authorised to be levied.

PART IV.
—cont.
Power to reduce and again raise rates.

50. Notwithstanding anything contained in this Order the rates authorised by this Order shall not be levied on or in respect of any vessel owned or employed by the corporation of the city of Glasgow (in this section referred to as "the corporation") for the sole purpose of conveying to the sewage purification works (in this section referred to as "the works") of the corporation materials exclusively required for the treatment of sewage at the works or for the carrying on of the works or for the sole purpose of conveying away sludge or residual products from the works for which payment or other equivalent consideration is not received by the corporation.

For protection of corporation of Glasgow.

51. Subject to the provisions of the Air Navigation Acts 1920 and 1936 or of any order made in pursuance thereof the Trustees may demand levy collect and receive on and in respect of seaplanes entering or using the limits of the Trustees such reasonable rates as may from time to time be approved by the Minister of Transport which rates shall be in lieu of the rates leviable under this Order in respect of vessels.

Rates on seaplanes.

52. The rates demanded levied collected and received by the Trustees and other funds and moneys of the Trustees shall be applied exclusively in maintaining and continuing the works vested in them and authorised by this Order and in providing plant for the same and generally in carrying into effect the objects and purposes of this Order and meeting the expenses thereunder incurred.

Application of rates &c.

53. The rates authorised by this Order shall at all times be charged equally to all persons in respect of the same description or class of vessel trading between the same places.

Rates to be charged equally to all persons.

54. The collector of rates may either alone or with any other person enter into any vessel in order to ascertain the rates payable to the Trustees in respect of such vessel.

Collector may enter vessels to ascertain rates payable.

PART IV.

—cont.

Master of
vessel to
produce
certificate
of registry.

55.—(1) The master of every registered vessel shall on demand produce the certificate of the registry of such vessel to the collector of rates.

(2) Any such master who refuses or neglects to make such production on demand shall be guilty of an offence and shall be liable to a penalty not exceeding twenty pounds.

Penalty on
evading
payment of
rates.

56. The master of any vessel who attempts to evade the payment of the rates payable to the Trustees in respect of such vessel shall pay to the Trustees three times the amount of the rates of which he has attempted to evade the payment and such amount may be recovered from such master in the same manner as penalties imposed by this Order are directed to be recovered or by action in any court of competent jurisdiction.

Recovery
of rates by
distrain of
ship and
tackle.

57.—(1) If the master of any vessel in respect of which any rates are payable to the Trustees refuse or neglect to pay the same or any part thereof the collector of rates may with such assistance as he may deem necessary go on board of such vessel and demand such rates and on non-payment thereof or of any part thereof take distrain or arrest of his own authority such vessel and the tackle apparel and furniture belonging thereto or any part thereof and detain the matters so distrained or arrested until such rates are paid.

(2) If any of such rates remain unpaid for the space of seven days next after any distress or arrestment so made the collector of rates may cause the matters so distrained or arrested to be appraised by two or more sworn appraisers and afterwards cause the matters distrained or arrested or any part thereof to be sold and shall apply the proceeds of such sale in or towards satisfaction of the rates so unpaid and the expenses of taking keeping appraising and selling the matters so distrained or arrested handing over the balance (if any) to the master of such vessel on demand.

Disputes
concerning
rates or
charges
occasioned
by distress
to be settled
by sheriff.

58. If any dispute arise concerning the amount of any rates due or the charges occasioned by any distress or arrestment by virtue of this Order the person making such distress or using such arrestment may detain the matters distrained or arrested until the amount of the rates due or the charges of such distress or arrestment be ascertained by the sheriff of Lanarkshire or any

of his substitutes at Glasgow or by the sheriff of Renfrew and Bute or his substitute at Greenock who upon application made to him for that purpose shall determine the same and award such expenses to be paid by either of the parties to the other of them as he shall think reasonable and such expenses if not paid on demand shall be levied by distress or poinding and sale and such sheriff or sheriff substitute shall issue his warrant accordingly.

PART IV.
—cont.

59. The collector or other proper officer of His Majesty's Customs at any port or harbour in the Firth of Clyde or in the River Clyde may with the consent of the Commissioners of His Majesty's Customs and Excise refuse to receive any entry or give any docquet discharge or clearance or take any report inwards or outwards of any vessel liable to the payment of any of the rates leviable by the Trustees under the authority of this Order until the master of such vessel produces to such collector or officer a certificate under the hand of the collector of rates that the rates payable in respect of such vessel have been paid or if there be any dispute as to the rates payable until such collector or officer shall be satisfied that sufficient security has been given for the payment of such rates when ascertained together with the expenses arising from the non-payment thereof.

Collector of
Customs
may with-
hold clear-
ance to any
vessel until
rates are
paid.

PART V.

WORKS.

60.—(1) Subject to the provisions of this Order the Trustees may make and thereafter maintain in the lines and according to the levels shown on the deposited plan and sections the works hereinafter described with all proper works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as may be required for those purposes.

Power to
make works.

(2) The works hereinbefore referred to and authorised by this Order are—

An improvement alteration deepening and widening of the navigable channel of the River or Firth of Clyde commencing at or near a point in the

PART V.
—cont.

channel or bed of that river or firth five hundred and eight yards or thereabouts north-eastward from the outer north-eastern end of Newark Castle on the south shore of the said river or firth at Port Glasgow measured along an imaginary straight line drawn from the said end of that castle to the mouth of Cardross Burn on the north shore of the said river or firth (the point thus defined being on the centre line of the Clyde Navigation Trustees' deepened channel) and terminating at or near a point in the channel of the said river or firth three hundred and fifty yards or thereabouts from the outer north-western end of Princes Pier at Greenock measured along an imaginary straight line drawn in a direction approximately north-east from that end of the said pier.

(3) The Trustees may within the limits shown on the deposited plan dredge excavate cut away and remove the solum bed and banks of the said portion of the said river or firth to such an extent as may be necessary for the purposes of the works authorised by this Order.

(4) Notwithstanding anything contained in this section the Trustees shall continue to maintain the works authorised by this Order to a depth of not less than 33·1 feet below Ordnance datum.

(5) The powers of the Trustees under this section shall be exerciseable subject to the provisions of the section of this Order of which the marginal note is "Crown rights" and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands or the Minister of Shipping on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Trustees to the Commissioners of Crown Lands or to the Minister of Shipping of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Trustees under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands or the Minister of Shipping as the case may be.

(6) Any of the works authorised by this Order which have been or are in course of being executed at the commencement of this Order shall be held to be part of the undertaking to the same effect as if such works had been executed under the authority of this Order.

PART V.
—cont.

61.—(1) The Trustees may subject as hereinafter provided deposit the material dredged or excavated in executing and maintaining the works authorised by this Order at any place in the River or Firth of Clyde seaward of a line drawn from Whitefarland Point to Roseneath Point provided that no material shall be deposited at any place below high-water mark otherwise than in such position and under such restrictions as may be determined by the Minister of Shipping after making such inquiries as he may consider necessary.

Deposit of
dredgings.

(2) Sewage or other offensive material shall not be deposited by the Trustees in the River or Firth of Clyde above Garroch Head or on the banks thereof but all such material shall be removed by the Trustees and deposited in the sea below Garroch Head in such position as may be approved by the Minister of Shipping.

62. Except as hereinafter provided the Trustees shall not execute any works or perform any operations in the River or Firth of Clyde between a line drawn from Newark Castle to Cardross Burn on the one side and a line drawn from Whitefarland Point to Roseneath Point on the other side without the consent in writing of the Greenock Harbour Trustees or failing such consent without the authority of Parliament hereafter granted. Provided that the Trustees may without such consent maintain and deepen the present deep water navigable channel between Newark Castle and Ladyburn and that the Greenock Harbour Trustees shall when required by the Trustees and at the expense of the Trustees maintain and deepen the present deep water navigable channel between Ladyburn and Whitefarland Point.

Operations
betwixt
certain
points to
be with
consent of
Greenock
Harbour
Trustees.

63. For the protection of the Greenock Harbour Trustees the following provisions shall have effect and in the exercise by the Trustees of the powers conferred by this Part of this Order the same shall be exercised in

For pro-
tection of
Greenock
Harbour
Trustees.

PART V.
—cont.

accordance with such provisions and not otherwise (that is to say):—

- (1) The channel authorised by this Order which is edged red upon the deposited plan and sections sheet No. 3 (in this section referred to as "the plan") shall be deepened to a uniform depth not exceeding 35·1 feet below Ordnance datum:
- (2) The channel shall be widened so as to be of the breadths shown on the plan vizt.—

Three hundred and fifty feet from Inchgreen to the west entrance to the Great Harbour Greenock increasing to four hundred feet at Garvel Point continuing at that breadth to Garvel Beacon increasing to six hundred and fifty feet at a point one thousand feet west of the James Watt Dock entrance and diminishing to four hundred and fifty feet at the Albert Harbour entrance and increasing to five hundred feet at the western termination thereof:

- (3) The dredging of the said channel between Inchgreen and its western termination shall be confined to the space shown between the lines on the plan representing the sides of the channel except where the material to be dredged is of such a nature as to require dredging outside the said lines for the actual formation of the slopes of the channel. The access to the James Watt Dock to the extent of the area shown on the plan shall be maintained at the expense of the Trustees to the depth of 33·1 feet below Ordnance datum. Provided that that portion of the said channel between Inchgreen and its western termination lying to the south side of the dotted green line shown on the plan shall not be dredged by the Trustees without the consent in writing of the Greenock Harbour Trustees:
- (4) The depths of the water so far as available for navigation berthage and launching purposes shown upon the plan shall be maintained at the expense of the Trustees:

- (5) After the Trustees have completed the works authorised by this Order the following provisions shall apply and have effect with reference to the dredging necessary to obtain preserve and maintain the said depths of water in the Western Channel the Garvel Point Channel and the portion of the Eastern Channel to the westward of Ladyburn as hereinafter in this subsection defined:—

(a) In this subsection the Western Channel the Garvel Point Channel and the Eastern Channel mean respectively the channels which are defined on four identical plans signed by the Earl of Ducie the chairman of the Committee of the House of Lords to whom the Bill for the Clyde Lighthouses Act 1880 was referred one of each of which plans was respectively deposited in the office of the Clerk of the Parliaments and with the sheriff clerk of the county of Renfrew the clerk of the Trustees and the clerk of the Greenock Harbour Trustees;

(b) If at any time such dredging in the opinion of the Greenock Harbour Trustees has become necessary in consequence of silting having taken place they may give notice in writing thereof to the Trustees and if the Trustees shall approve of such dredging the Greenock Harbour Trustees shall execute the same at the expense of the Trustees and the expense of such dredging shall be recoverable from the Trustees by the Greenock Harbour Trustees and if the Trustees shall not within thirty days after the service of such notice approve of such dredging the Greenock Harbour Trustees may apply to the sheriff of Renfrew and Bute or his substitute at Greenock who may after hearing parties make an order for the execution of such dredging by the Greenock Harbour Trustees at the expense of the Trustees;

(c) If at any time such dredging in the opinion of the Trustees has become necessary they may give notice in writing thereof to the

PART V.
—cont.

Greenock Harbour Trustees requiring them at the expense of the Trustees to execute the same;

(d) If the Greenock Harbour Trustees refuse or delay to execute any dredging of which they have given notice and which has been approved of by the Trustees or if they refuse or delay to execute any dredging of which the Trustees may have given notice for thirty days after the service of such notice the Trustees may apply to the said sheriff for an order to have the dredging executed by the Greenock Harbour Trustees at the expense of the Trustees;

(e) It shall be in the power of the said sheriff to annex to his order such reasonable conditions relative to such dredging or otherwise as he may think proper or necessary;

(f) In the event of the Trustees and the Greenock Harbour Trustees differing in opinion with reference to the quantity of silting which has occurred or may require to be removed or the price to be charged for the removal thereof such question shall be referred to arbitration in manner provided by subsection (7) of this section:

- (6) Except as by this Order otherwise expressly provided nothing contained in this Order shall affect the rights of the Greenock Harbour Trustees as existing at the date of the passing of the Act confirming the Clyde Lighthouses Order 1912 or authorise any interference with the property of such trustees. Provided that any provisions contained in any Act relating to the Greenock Harbour Trustees with reference to limiting the liability of the Trustees in the removal of silting shall receive full force and effect:
- (7) If any question not hereinbefore specially provided for arises between the Trustees and the Greenock Harbour Trustees respecting any of the provisions of this section such dispute shall unless otherwise agreed be settled by an

arbiter to be agreed upon between the parties or in case of failure to agree to be appointed on the application of either party by the sheriff of Renfrew and Bute or his substitute at Greenock.

PART V.
—cont.

64. If any omission mis-statement or erroneous description has been made of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Trustees after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which the said lands are situated for the correction thereof and if it appears to the sheriff that the omission mis-statement or erroneous description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the sheriff clerk of the county in which the lands affected thereby are situated and with the town clerk of the burgh or with the clerk of the district council (as the case may be) in which the lands affected thereby are situated and such certificate shall be kept by such sheriff clerk town clerk or clerk to the district council respectively with the other documents to which the same relates and thereupon the deposited plan or book of reference (as the case requires) shall be deemed to be corrected according to such certificate and the Trustees may enter on take hold and use those lands and execute the works in accordance with such certificate.

Errors and omissions in plan and book of reference may be corrected by sheriff who shall certify same.

65. In executing the works authorised by this Part of this Order the Trustees may subject to the proviso contained in subsection (3) of the section of this Order of which the marginal note is "For protection of Greenock Harbour Trustees" deviate laterally from the lines thereof shown on the deposited plan but only to such extent within the limits of deviation shown thereon as may be necessary for the formation of the slopes of the channel authorised by this Order to be improved altered deepened or widened and may deviate vertically from the levels thereof shown on the deposited sections to any extent downwards not exceeding two feet but only in so far as may be necessary for the purpose of

Limits of lateral and vertical deviation.

PART V.
—cont.

securing an actual depth of 35·1 feet below Ordnance datum Provided that such powers of deviation shall not be used for diverting the lines of the said channel.

Period for compulsory purchase of lands.

66. The powers of the Trustees for the compulsory purchase of lands for the purposes of this Part of this Order shall not be exercised after the thirtieth day of June one thousand nine hundred and forty-three.

Period for completion of works.

67. If the works by this Part of this Order authorised are not completed by the thirtieth day of June one thousand nine hundred and fifty the powers by this Order granted to the Trustees for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

PART VI.

MISCELLANEOUS.

Power to Trustees to make bye-laws.

68. Subject to the statutory rights of the Greenock Harbour Trustees under the Greenock Port and Harbours Consolidation Act 1913 the Trustees may from time to time make such byelaws as they think fit for all or any of the following purposes Provided that between the present eastern boundary of the burgh of Greenock and the western termination of the deep water channel authorised by the repealed Acts namely at or near a point in the channel of the River or Firth of Clyde three hundred and eighty-three yards or thereabouts from the north-western corner of the Albert Harbour at Greenock measured along an imaginary straight line drawn in a direction north-east by north from that corner of the said harbour such byelaws shall only be applicable to and have effect within the said deep water channel (that is to say):—

For regulating the conduct of masters or persons having the control of vessels propelled by steam or other power with regard to the rate of speed at which they may proceed through the portion of the River or Firth of Clyde within the limits of the Trustees or when passing any vessel engaged in charging repairing or otherwise dealing with the buoys or beacons of the Trustees or engaged in the carrying out of any works or operations of the Trustees;

3 & 4 GEO. 6. *Clyde Lighthouses* Ch. xlii.
Consolidation Order Confirmation Act, 1940.

For regulating the anchorage of vessels within the portion of the said river or firth within the limits of the Trustees;

PART VI.
—cont.

For regulating the launching of vessels within the limits of the Trustees;

For requiring and regulating the lighting buoying or otherwise marking the position of any vessel sunk stranded or abandoned within the said portion of the said river or firth within the limits of the Trustees and for regulating the removal of any such vessel.

69. The provisions of the Harbours Clauses Act with respect to the byelaws to be made by the undertakers (except section 85 and so much of section 88 as requires a copy of such byelaws to be painted or placed on boards and put up in some conspicuous part of the office of the undertakers) are incorporated with this Order and shall apply to all byelaws made by the Trustees under the authority of this Order Provided that such byelaws shall not have any force or effect unless and until the same are confirmed by the Minister of Shipping.

Byelaws to be confirmed by Minister of Shipping.

70. On application by the Trustees for confirmation of any byelaws framed by them under the powers conferred on them by this Order the corporation of Greenock shall be entitled to appear and oppose the confirmation of such byelaws in so far as they may take away abridge or diminish any of the rights privileges jurisdiction or powers which now belong to or are enjoyed by the corporation or the magistrates of the burgh of Greenock.

Corporation of Greenock may appear before Minister of Shipping.

71. On the application by the Trustees for confirmation of any byelaws framed by them under the powers conferred on them by this Order the Clyde Pilotage Authority constituted by the Clyde Pilotage Order 1920 confirmed by the Pilotage Orders Confirmation (No. 3) Act 1920 shall be entitled to appear and oppose the confirmation of such byelaws in so far as they may conflict with any byelaws of the Clyde Pilotage Authority.

For protection of Clyde Pilotage Authority. 10 & 11 Geo. 5. c. cxxiv.

72. Notwithstanding anything contained in this Order or in the Acts incorporated therewith all offences against any byelaws made under the powers of this Order or such Acts may be tried in the court of the bailie of

Jurisdiction of bailie of Firth of Clyde and magistrates of Greenock.

PART VI.
—cont.

the River and Firth of Clyde in the same way and manner and subject to the same procedure as police offences under the Glasgow Police Acts 1866 to 1938 and any offences against the said byelaws which may be committed within the jurisdiction of the magistrates of Greenock may be tried by the said magistrates in manner directed by the Summary Jurisdiction (Scotland) Acts.

Power to
remove
wrecks &c.

57 & 58 Vict.
c. 60.

73.—(1) The Trustees may within the limits of the Trustees search for raise and remove or if necessary, destroy break up take away and subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894 sell any wrecked stranded abandoned or sunken vessel or other wreck or thing (all of which are in this section included in the expression "vessel") and the cargo goods and property therein or any obstruction or floating timber and may enter into contracts for all or any of such purposes and the expense of searching for raising removing destroying breaking up taking away and selling any such vessel cargo goods property obstruction or floating timber together with a reasonable sum for establishment charges and services of the Trustees and their officers and employees depreciation of plant and interest on the capital cost of the plant used in such operations shall be repaid by the master or owner of the same.

(2) The Trustees may detain such vessel cargo goods property obstruction or floating timber in security of such expense and on non-payment of such expense on demand may sell the same and out of the proceeds of such sale may pay the expense incurred in searching for raising removing or destroying breaking up or taking away such vessel cargo goods property obstruction or floating timber and the charges of detention and sale handing over the surplus proceeds (if any) of such sale to the person entitled to the same and if from such proceeds a sufficient sum to pay such expense is not obtained the deficiency shall be recoverable from the master or owner of such vessel cargo goods property obstruction or floating timber in the same manner as damages or expenses are by this Order or any Act incorporated therewith authorised to be recovered Provided always that the Trustees shall before selling any such cargo goods or property as aforesaid pay all duties which may be due to His Majesty in respect of the cargo goods or property

to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods or property.

(3) For the purpose of giving effect to and in furtherance of the powers conferred on the Trustees by this section—

(a) The words “expense” “expenses” and “charges” in this section shall include all expenses incurred by the Trustees in searching for lighting watching detaining advertising marking buoying raising removing destroying breaking up taking away and selling any vessel cargo goods or property therein or any obstruction of floating timber wrecked stranded abandoned or sunk within the limits of the Trustees or any part thereof or under any contract or agreement entered into for all or any of such purposes or otherwise for any purpose in respect of such vessel cargo goods property obstruction or floating timber; and

(b) the word “owner” shall include—

(i) the owner of any vessel at the time when the same is wrecked stranded abandoned or sunk within the limits of the Trustees and shall also include any former owner of the vessel whenever it is shown that the former owner relinquished or transferred his interest in the vessel after the date at which the vessel was wrecked stranded abandoned or sunk;

(ii) the owner of any cargo goods or property in the vessel and any obstruction or floating timber at the time when the same shall first impede the navigation of the limits of the Trustees; and

(iii) the owner of such vessel cargo goods property obstruction or floating timber at any time thereafter.

(4) The powers of this section may be exercised by the Trustees notwithstanding any steps taken by the owner of the vessel cargo goods property obstruction or floating timber for the removing raising or destruction thereof.

PART VI.
—cont.

(5) The powers conferred on the Trustees by this section may be exercised by the Trustees or any of their officers authorised by them in that behalf and all notices or directions which are authorised to be given under this Order or under any byelaws made thereunder may be signed by the clerk or such officer.

(6) Notwithstanding anything contained in this Order the master of any vessel who fails to comply with any notice or direction given in pursuance of this order shall be guilty of an offence and shall be liable to a penalty of twenty pounds.

(7) Except for the purpose of removing any obstruction in the limits of the Trustees nothing in this section shall entitle the Trustees to remove any wreck (as defined by section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the Receiver of Wreck under the provisions of Part IX of the said Merchant Shipping Act and if the Trustees for any such purpose remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such balance of the proceeds of sale thereof as is referred to in subsection (1) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

Works
below high-
water mark
to be sub-
ject to
approval of
Minister of
Shipping.

74.—(1) The Trustees shall not under the powers of this Order construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work or carry out any dredging or deposit below high-water mark of ordinary spring tides any material excavated or dredged without the previous consent of the Minister of Shipping to be signified in writing under the hand of a secretary or some person authorised by the said Minister to act in that behalf and then only according to such plan and under such restrictions and regulations as the said Minister may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Trustees shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval.

(2) If any work be commenced altered extended or completed contrary to the provisions of this section the Minister of Shipping may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Trustees and the amount of such costs and charges shall be a debt due from the Trustees to the Crown and shall be recoverable accordingly.

PART VI.
—cont.

75.—(1) After the completion of the works authorised by this Order the Trustees shall at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

Permanent
lights on
works.

(2) If the Trustees fail to comply in any respect with the provisions of this section they shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

76.—(1) The Trustees shall at or near such part of the works authorised by this Order as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister of Shipping shall from time to time require or approve.

Lights on
works
during con-
struction.

(2) If the Trustees fail to comply in any respect with the provisions of this section they shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

77. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Trustees to take use or in any manner

Crown
rights.

PART VI.
—cont.

interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Minister of Shipping respectively without the consent in writing of the Commissioners of Crown Lands or the Minister of Shipping as the case may be on behalf of His Majesty first had obtained for that purpose.

Exemptions
and savings
for Govern-
ment de-
partments.

78. Sections 28 and 99 of the Harbours Clauses Act shall apply to and for the benefit of any Government department in the same manner as they apply to and for the benefit of the Government departments specially named in those sections.

Saving
rights of
Port
Glasgow
Town
Council.

79. Nothing in this Order shall prejudice or affect the rights powers privileges and authorities of the provost magistrates and councillors of the burgh of Port Glasgow under and by virtue of the Port Glasgow Burgh and Harbour Order 1939.

Inquiries by
Minister of
Transport.

80.—(1) The Minister of Transport may cause to be held such local inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him by the section of this Order of which the marginal note is “ Rates on seaplanes ” and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this Order.

(2) For the purpose of any such inquiry the person appointed to hold the inquiry may require any person to attend to give evidence or to produce any documents in his custody or under his control which relate to any matter in question at the inquiry and may take evidence on oath and for that purpose administer oaths or may instead of administering an oath require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined:

Provided that—

- (a) a person shall not be required to go more than ten miles from his place of residence unless the necessary expenses of his attendance are paid or tendered to him; and

(b) nothing in this section shall empower the person holding the inquiry to require the production of the title or any instrument relating to the title of any land not being the property of the Trustees.

PART VI
—cont.

(3) Any person who refuses or wilfully neglects to attend when required to do so in pursuance of this section or to give evidence or who wilfully alters suppresses conceals destroys or refuses to produce any book or other document which he may be required to produce for the purposes of this section shall be guilty of an offence and shall be liable to a penalty not exceeding fifty pounds or to imprisonment for a term of not exceeding six months or to both such penalty and imprisonment.

(4) Where the Minister of Transport causes any such inquiry to be held the costs and expenses incurred by him in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as he may determine for the services of any officer engaged in the inquiry) shall be paid by the Trustees or party to the inquiry as the Minister of Transport may direct and he may certify the amount of the costs and expenses so incurred and any amount so certified and directed by the Minister of Transport to be paid by the Trustees or person shall be recoverable from the Trustees or person as a debt to the Crown.

(5) The Minister of Transport may make orders as to the costs and expenses of the parties to any such inquiry and as to the parties by whom such costs and expenses shall be paid.

81. If at any time the Minister of Shipping deems it expedient for the purposes of this Order to order a survey and examination of a work constructed by the Trustees under the powers of this Order which is on under over or across tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Trustees shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Trustees to the Crown and be recoverable accordingly.

Survey of
works by
Minister of
Shipping.

PART VI.

—cont.

Reserving
Merchant
Shipping
and general
Acts.

82. Nothing contained in this Order shall be deemed to exempt the Trustees or their undertaking from the provisions of the Merchant Shipping Acts 1894 to 1932 or of any general Acts relating to harbours or docks dues on shipping or on goods carried in vessels now in force or which shall be passed during the present or any future sessions of Parliament or from any future revision or alteration under the authority of Parliament of the rates authorised by this Order.

Saving from
effect of
repeal.

83.—(1) Subject to the provisions of this Order—

- (a) all property vested in the existing Trustees at the commencement of this Order shall continue vested in the Trustees to the same effect and extent and all acts works matters and things done or commenced under the powers of the repealed Acts or any of them which were at the commencement of this Order valid and available or in progress and all existing notices notices to treat agreements awards conveyances contracts titles deeds instruments feus leases wayleaves obligations rights and remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if the Act confirming this Order had not been passed;
- (b) all actions arbitrations submissions prosecutions and proceedings by with or against the existing Trustees by reason of any matter or thing accruing or done before the commencement of this Order under or in the execution of or in relation to any of the repealed Acts may be continued commenced taken made or prosecuted by or against the Trustees as if the Act confirming this Order had not been passed;
- (c) all existing byelaws rules regulations orders licences appointments tables of rates or charges and lists of tolls shall continue in force until repealed altered or revoked or until their expiration and may be enforced in like manner and with the same penalties as if made for

like purposes respectively under the provisions of this Order;

PART VI.
—cont.

- (d) all rates rents tolls charges and other sums at the commencement of this Order due or accruing due to the existing Trustees or any other authority company body or person may be collected and recovered as if the Act confirming this Order had not been passed;
- (e) all books plans registers deeds documents and writings which under any of the repealed Acts or otherwise would have been receivable in evidence shall be receivable in evidence as if the Act confirming this Order had not been passed;
- (f) all plans sections and books of reference and all corrections and certificates of correction thereof respectively deposited for the purposes of any of the repealed Acts with any clerk of the peace town clerk or sheriff clerk shall remain in his custody for all intents and purposes as if the Act confirming this Order had not been passed;
- (g) any agreement or document relating to the provisions of any of the repealed Acts which are re-enacted in this Order shall be of full force and effect and shall be deemed to refer to the provisions in that behalf contained in this Order.

(2) The mention of particular matters in this Order shall not be held to prejudice or affect the general application of section 38 of the Interpretation Act 1889.

52 & 53 Vict.
c. 63.

84. All offences committed in contravention of and penalties and forfeitures imposed by this Order or the Acts incorporated therewith shall be prosecuted and recovered under the provisions of the Summary Jurisdiction (Scotland) Acts.

Prosecution
of offences
and recovery
of penalties.

85. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees out of their revenues or out of the rates authorised to be levied by them.

Costs of
Order.

Ch. xlii. *Clyde Lighthouses* 3 & 4 GEO. 6.
Consolidation Order Confirmation Act, 1940.

The SCHEDULE referred to in the foregoing Order.

REPEALED ACTS.

<i>Session and chapter.</i>	<i>Title.</i>
29 Geo. II. c. 20.	None.
34 & 35 Vict. c. cxxxii.	Clyde Lighthouses Act 1871.
43 & 44 Vict. c. cxxxvii.	Clyde Lighthouses Act 1880.
47 Vict. c. x.	Clyde Lighthouses Act 1884.
53 Vict. c. vii.	Clyde Lighthouses Act 1890.
2 & 3 Geo. 5. c. v.	Clyde Lighthouses Order Confirmation Act 1912.

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